

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FORMUKLEEN, INC.,

Complainants

v.

TOP SHIPPING SYSTEMS, CORP.,

Respondent.

**RESPONDENT TOP SHIPPING SYSTEMS, CORP.'S
PROPOSED FINDINGS OF FACTS**

I. TSS'S ROLE ON THE SUBJECT SHIPMENTS

1. TSS acted as customs house broker and provided post-arrival services with respect to the subject shipments, including customs clearance, local drayage, delivery, and warehousing. Entry No. 8 at 1, 4; Del Monte Dep. Tr. 94:19–22 (CX-0139).
2. TSS did not issue a house bill of lading for either CHSU4047424 or BSIU8431017. Respondent's Answer to Interrogatory No. 6.
3. The house bill of lading for CHSU4047424 identifies Top Sealand International. Del Monte Dep. Tr. 75:8–18 (CX-0137).
4. Dolphin Logistics was Top Sealand International's U.S. agent for CHSU4047424 and provided the arrival notice, availability, and charge information. Del Monte Dep. Tr. 75:8–24 (CX-0137).
5. Del Monte did not communicate directly with Top Sealand concerning CHSU4047424 and instead communicated with its U.S. agent, Dolphin Logistics. Del Monte Dep. Tr. 75:3–24 (CX-0137).
6. With respect to BSIU8431017, Del Monte identified Qichen Logistics as the NVOCC or freight forwarder involved with the shipment. Del Monte Dep. Tr. 65:16–19.
7. DHY Shipping Line Inc., was Qichen Logistics U.S. Agent for BSIU8431017 and provided the arrival notice, availability and charge information. (RX000101)

II. TSS'S SERVICES WERE POST-ARRIVAL AND LOCAL

8. Del Monte testified that his work was “post arrival” and consisted of customs brokerage, customs clearance, delivery of the container to the customer, and payment of outstanding terminal charges. Del Monte Dep. Tr. 94:19–22 (CX-0139).

9.. TSS’s customs-brokerage work involved clearing imported goods after their arrival in the United States. Del Monte Dep. Tr. 5:23–6:4 (CX-0125).

10. After Customs released the goods, TSS provided local truckers with pickup and delivery instructions. Del Monte Dep. Tr. 6:1–8 (CX-0125).

11. TSS facilitated local trucking in the United States for the subject containers. CX-0119 to CX-0121.

12. TSS generated and communicated delivery orders and local pickup and delivery instructions to truckers. CX-0127 to CX-0129; CX-0133 to CX-0134.

13. Villena described TSS’s transportation involvement following release as “the local trucking part of it.” Villena Dep. Tr. 63:9–24.

III. ADVANCEMENT OF CHARGES

14. TSS paid or advanced certain charges on FormuKleen’s behalf and subsequently invoiced FormuKleen for those amounts. Del Monte Dep. Tr. 26:13–25 (CX-0126).

15. TSS advanced customs duties associated with CHSU4047424. Del Monte Dep. Tr. 59:2–5.

16. Del Monte testified that TSS did not mark up duties or terminal fees and charged those amounts at face value. Del Monte Dep. Tr. 57:20–58:1.

IV. DUTY PAYMENT AND CLAIMED REPARATIONS

17. TSS initially advanced customs duties for FormuKleen as a courtesy credit accommodation. Respondent’s Answer to Interrogatory No. 7.

18. After FormuKleen failed to reimburse duty advances and became delinquent, TSS revoked the duty-advance accommodation, after which FormuKleen was required to pay customs duties directly to CBP. Respondent’s Answer to Interrogatory No. 7.

19. TSS notified FormuKleen by email regarding the CBP assessment or deadline associated with the instance in which FormuKleen was required to make payment itself. Del Monte Dep. Tr. 59:19–22.

20. Del Monte testified that TSS did not fail to timely remit CBP fees for CHSU4047424. Del Monte Dep. Tr. 59:17–18.

21. FormuKleen, as importer of record, was responsible for payment of customs duties due to CBP. (CBP Form 7501) (RX1)

22. BSIU8431017 was moved from the port to TSS's warehouse in connection with TSS's post-arrival handling of the container. Respondent's Answer to Interrogatory No. 5.

23. BSIU8431017 was released on June 25, 2025 after additional account payments were made. Entry No. 32 at 1–3, 5–7; Respondent's Answer to Interrogatory No. 5.

24. FormuKleen continued to owe TSS an outstanding balance after BSIU8431017 was released. Respondent's Answer to Interrogatory No. 5.

Respectfully Submitted,

TOP SHIPPING SYSTEMS CORP

Ricky Villena
Vice President, pro se

CERTIFICATE OF SERVICE

I hereby certify that on September 10th, 2026, I have served the foregoing to all parties of record in this proceeding via electronic mail.

By:

TOP SHIPPING SYSTEMS CORP

Ricky Villena

Vice President, pro se